

Vikas Gupta & Another v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 20 December 2018 · 2018 SCC OnLine All 3174 · Writ - C No. 40668 of 2018 · **Writ petition dismissed on the ground of alternative remedy**

HEADNOTE

Where a theft assessment has become final (the provisional assessments having been treated as final for want of objection) and the consumer's only grievance is that he was never served the notice, the disputed question of service of notice is more appropriately dealt with in an appeal under Section 127 of the Electricity Act, 2003 against the final assessment. If the consumer wishes to pay in instalments, he may move the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005. In view of these alternative remedies, the writ was dismissed.

HOLDING-UNITS

INTERPLAY · EA2003::127

Disputed service of notice is for the s.127 appeal; instalments via Clause 6.14

QUESTION

Should the writ court decide a disputed question of service of the assessment notice, or is that for the s.127 appeal?

HOLDING

The disputed question of service of notice depends on facts more appropriately dealt with in a s.127 appeal against the final assessments; and instalments, if desired, are for the Executive Engineer under Clause 6.14. Given these alternative remedies, the writ was dismissed with liberty to avail them. ¶ 5-7

LIMITING FACTS

Two checkings (7.9.2017, 19.1.2018) alleged theft; provisional assessments treated as final for want of objection; demand notices sent by registered post; consumer alleged non-service.

PRINCIPLE TAGS

relegate-to-statutory-remedy A disputed question of service of the assessment notice is for the s.127 appeal against the final assessment, not the writ court; instalments are for the Clause 6.14 Executive Engineer. ¶ 6-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ASSESSMENT NOTICES WERE SERVED

Disputed fact left to the s.127 appellate authority. ¶ 6